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Case Number: 25NNCV01259 Hearing Date: August 21, 2026 Dept: E

Case No: 25NNCV01259

Hearing

Date: 08/21/2026 – 8:30 a.m.

Trial

Date: 09/28/2026

Case

Name: ABDEL RAHMAN HAMDAN v. KIA AMERICA, INC.

[TENTATIVE RULING –
MJOP]

RELIEF REQUESTED

Defendant, Kia America, Inc., moves for judgment on the pleadings as to Plaintiff's Complaint.

Defendant moves pursuant to CCP § 438 on the ground that the Complaint fails to state facts sufficient to constitute a cause of action.

PARTIES/PAPERS

Moving Party: Defendant, Kia America, Inc. (Defendant)

Responding Party: Plaintiff, Abdel Rahman Hamdan (Plaintiff)

Moving Papers: Notice/Motion; Declaration Douglas A.
Proudfoot; Proposed Order

Opposition Papers: Opposition; Proposed Order; Proof of
Service

Reply Papers: Reply

BACKGROUND

Plaintiff, Abdel Rahman Hamdan, filed the complaint in this
action on 2/26/2025 against Defendant, Kia America, Inc.

The caption on the first page of the complaint, which is
above the two enumerated causes of action on the first page, states that the
complaint is in regards to violation of the Song-Beverly Consumer Warranty Act
[“Act”] (Civil Code §§ 1790 et seq.).

The caption indicates that the two causes of action are for:

(1) Breach of Express Warranty Obligations Under the Act and (2) Breach of
Implied Warranty Obligations Under the Act.

Defendant now moves for judgment on the pleadings as to both
causes of action in the complaint on the grounds that the complaint fails to
state facts sufficient to constitute a cause of action.

PROCEDURAL

Meet and Confer

Before filing a
motion for judgment on the pleadings pursuant to this chapter, the moving party
shall meet and confer in person or by telephone with the party who filed the
pleading that is subject to the motion for judgment on the pleadings for the
purpose of determining if an agreement can be reached that resolves the claims
to be raised in the motion for judgment on the pleadings. (Code Civ. Proc.
(CCP), § 439(a).)

“A
determination by the court that the meet and confer process was insufficient

shall not be grounds to grant or deny the motion for judgment on the pleadings.” (CCP, § 439(a)(4).)

Here,

Defendant’s counsel (Douglas A. Proudfoot) alleges that he sent a meet and confer letter to Plaintiff’s counsel; however, Plaintiff did not respond to the meet and confer letter. (Proudfoot Decl., ¶¶ 3-4.)

In

opposition, Plaintiff argues that Defendant failed to comply with the meet and confer requirement. It is not entirely clear why Plaintiff is arguing that Defendant did not meet and confer, but it appears that Plaintiff may be arguing that Defendant did not comply because Defendant did not meet and confer “in person or by telephone.”

Plaintiff’s

opposition acknowledges that failure to meet and confer is not a basis to deny the MJOP; however, Plaintiff argues that the Court should consider Defendant’s failure to meet and confer if determining whether leave to amend is warranted.

The

Court to hear argument.

LEGAL STANDARD – MOTION FOR JUDGMENT ON THE PLEADINGS

If moving party is a

defendant, a motion for judgment on the pleadings may be made if either of the following conditions exist: (1) The court has no jurisdiction of the subject of the cause of action alleged in the complaint, or (2) The complaint does not state facts sufficient to constitute a cause of action against the defendant. (CCP, § 438(c)(1)(B).)

“The grounds for motion provided for in

this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (CCP, § 438(d).)

“A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself. [Citation.]” (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877.) “A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 (Citations Omitted).) The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322 (citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216).)

TENTATIVE RULING

The Court plans to hear argument for the reasons explained below.

First Cause of Action – Breach of Express Warranty

Plaintiff's first cause of action is for breach of express warranty obligations under the Song-Beverly Act.

Defendant argues that Plaintiff's first cause of action fails because the complaint essentially admits that the subject vehicle is “used,” and since the Song-Beverly Act does not apply to “used” vehicles, Plaintiff's action fails.

Overall, problematic with both parties' arguments is that neither party cites to a single case that explains what the elements are that must be alleged to sufficiently state a claim under the Song-Beverly Act.

Further, problematic with both parties' arguments is that the binding authority that both parties rely on are not

pleading cases. Further, on a few occasions, Defendant attempts to rely on federal district court cases.

Dealing with Allegations

The Song-Beverly Consumer Warranty Act

provides buyers of new motor vehicles with specific remedies when a vehicle turns out to be defective. (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195 citing Civ. Code § 1791 et seq.)

Section 1793.22, subdivision (e)(2)

defines “new motor vehicle.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195.)

Under Civil Code § 1793.22(e)(2):

“New motor vehicle” means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. “New motor vehicle” also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or any other legal entity, to which not more than five motor vehicles are registered in this state. “New motor vehicle” includes the chassis, chassis cab, and that portion of a motor home devoted to its propulsion, but does not include any portion designed, used, or maintained primarily for human habitation, a dealer-owned vehicle and a “demonstrator” or other motor vehicle sold with a manufacturer’s new car warranty but does not include a motorcycle or a motor vehicle which is not registered under the Vehicle Code because it is to be operated or used exclusively off the highways. A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type.

(Civ. Code, § 1793.22(e)(2).)

Defendant points out how Plaintiff’s complaint alleges that Plaintiff purchased the subject vehicle with 14,400 miles on it. (Compl., ¶ 7.)

Defendant thus argues that Plaintiff’s complaint does not allege a “new motor vehicle” under the Act because the

subject vehicle is used.

Several problems arise from Defendant's argument and Plaintiff's opposition.

First, to the extent that Defendant argues that Plaintiff does not allege that the subject vehicle is a "new motor vehicle," Plaintiff's complaint explicitly alleges that the subject vehicle is a "new motor vehicle."

In relevant part, Plaintiff alleges:

At all times mentioned herein, the SUBJECT VEHICLE was, and is, a "new motor vehicle" as defined at Civil Code § 1793.22(e)(2) of the Song-Beverly Consumer Warranty Act, Civil Code §§ 1790 et seq. (hereinafter referred to as the "ACT"), in that said SUBJECT VEHICLE was a new motor vehicle purchased with the MANUFACTURER's new car warranty and the Kia Certified Pre-Owned Warranty.

(Compl., ¶ 6.)

Defendant argues that despite the allegations in the complaint, under Civ. Code § 1793.22(e)(2) and *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*), Plaintiff's vehicle is not a "new motor vehicle."

In *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Supreme Court of California concluded that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a "motor vehicle sold with a manufacturer's new car warranty" under section 1793.22, subdivision (e)(2) 's definition of "new motor vehicle" unless the new car warranty was issued with the sale." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196.)

Based on the pleading, and based on Defendant's argument, the Court was initially inclined to find Defendant's argument unavailing because despite the fact that Plaintiff alleges the vehicle was purchased with 14,440 miles on it, Plaintiff still alleges that the vehicle "was a new motor vehicle purchased with the manufacturer's new car warranty and the Kia Certified Pre-Owned Warranty." (Compl., ¶ 6.)

Or to phrase it as a question, how can the Court find Defendant's argument availing when, at the very least, Plaintiff alleges the vehicle is a "new motor vehicle purchased with the manufacturer's new car warranty"?

The Court to hear argument.

Dealing with Contradictory Arguments
and Rodriguez

Problematically, Plaintiff's opposition adds a wrinkle that both parties do not address, and neither parties provide guidance to the Court on what to do.

Although page two (2) of Plaintiff's opposition correctly notes that the complaint does in fact allege that the subject vehicle is a "new motor vehicle" as defined by Civil Code section 1793.22(e)(2) because it was purchased with the manufacturer's new car warranty and the Kia Certified Pre-Owned Warranty (Oppo., p. 2, Ins. 22-24), page one (1) of Plaintiff's opposition entirely contradicts page 2 of Plaintiff's own opposition, and page 1 of the opposition also contradicts the allegations in the complaint.

Page one (1) of Plaintiff's opposition states, "Plaintiff's Complaint alleges that the Subject Vehicle was purchased as a Kia Certified Pre-Owned ("CPO") vehicle accompanied by both the balance of Kia's original New Vehicle Limited Warranty and a Kia CPO warranty issued directly by Kia at the time of Plaintiff's purchase." (Pl. Oppo., p. 1, Ins. 8-10, emph added.)

Or to phrase it differently, Plaintiff's opposition stating that the vehicle was accompanied by the "balance of Kia's original New Vehicle Limited Warranty" (Oppo., p. 1, Ins. 8-10) contradicts the complaint's allegations that the vehicle was "purchased with the MANUFACTURER's new car warranty." (Compl., ¶ 6).

Was the vehicle in fact purchased with "the MANUFACTURER's new car warranty" as ¶ 6 of the complaint alleges, or was the vehicle accompanied by a "balance of Kia's original New Vehicle Limited

Warranty” as page 1, lines 8-10 of the opposition concedes?

Plaintiff’s argument that the vehicle was “accompanied by both the balance of Kia’s original New Vehicle Limited Warranty and a Kia CPO warranty issued directly by Kia at the time of Plaintiff’s purchase” (Pl. Oppo., p. 1, Ins. 8-10) seems to be entirely in contradiction with the allegations in paragraph 6 of the complaint, and it flies entirely in the face of Rodriguez and appears to support Defendant’s argument that the subject vehicle is not a “new motor vehicle.”

At the hearing, the Court expects to hear from both parties as to what the Court is supposed to do when Plaintiff’s opposition contradicts the actual allegations in the complaint. Can the Court treat Plaintiff’s opposition as a concession, or does the Court have to ignore the argument in the opposition since the argument in the opposition is not technically alleged in the complaint?

The aforementioned issue could be determinative of Defendant’s motion for the reasons explained below.

In Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, the Supreme Court of California concluded that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a “motor vehicle sold with a manufacturer’s new car warranty” under section 1793.22, subdivision (e)(2) ’s definition of “new motor vehicle” unless the new car warranty was issued with the sale.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196.)

In opposition, Plaintiff argues that the subject vehicle is a “motor vehicle sold with a manufacturer’s new car warranty” under section 1793.22(e)(2) and thus a “new motor vehicle.”

Problematic with Plaintiff’s argument is that if the Court can treat page 1 of Plaintiff’s opposition as a concession, then in the Court’s view, the Court fails to see how Plaintiff stating that the vehicle was accompanied by the “balance of Kia’s original New Vehicle Limited Warranty” does not fly directly counter to Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196 because Plaintiff’s vehicle here would have been purchased with an unexpired manufacturer’s new car warranty.

In Rodriguez, plaintiffs

purchased a two-year-old car with over 55,000 miles on it and the car had an unexpired manufacturer's new car warranty. (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195.) The Supreme Court of California addressed whether or not plaintiffs' vehicle was a "new motor vehicle" under the portion of 1793.22(e)(2) that applied to a "motor vehicle sold with a manufacturer's new car warranty." (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195-196.)

The Supreme Court of California

concluded that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a "motor vehicle sold with a manufacturer's new car warranty" under section 1793.22, subdivision (e)(2) 's definition of "new motor vehicle" unless the new car warranty was issued with the sale." (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196.)

If the Court can treat Plaintiff's

statement in opposition – that the vehicle was accompanied by "the balance of Kia's original New Vehicle Limited Warranty" – as a concession, then the Court does not agree with Plaintiff on the issue that Plaintiff's subject vehicle is a "motor vehicle sold with a manufacturer's new car warranty" because the subject vehicle was purchased with an unexpired manufacturer's warranty in violation of Rodriguez.

Plaintiff's opposition argues that because

his complaint alleges that the vehicle was accompanied by both "the balance of Kia's original New Vehicle Limited Warranty and a Kia CPO warranty issued directly by Kia at the time of Plaintiff's purchase," Rodriguez is thus distinguishable and in fact supports Plaintiff's argument that his vehicle is a "new motor vehicle."

Plaintiff argues that because his

vehicle was also issued with a new Kia CPO warranty from Kia itself, unlike Rodriguez where there was not a newly issued CPO warranty, Plaintiff's vehicle qualifies as a "motor vehicle sold with a manufacturer's new car warranty" and is thus a "new motor vehicle."

Although there does not appear to be

case law directly on point as to Plaintiff's argument – that a newly issued CPO warranty at the time of sale of a used car qualifies as a "new car warranty" under the provision of 1793.22(e)(2) pertaining to a "motor vehicle sold with a

manufacturer's new car warranty" – Plaintiff's argument appears to be unavailing.

First, Plaintiff does not identify any legal authority that a newly issued CPO warranty constitutes a "new car warranty" under 1793.22(e).

Second, under the plain language of the statute that explains that a new motor vehicle is a "motor vehicle sold with a manufacturer's new car warranty," the Court notes that the plain language makes no reference to a manufacturer's "new CPO (Certified Pre-Owned) warranty."

Plaintiff's alternative reading of the phrase "new car warranty" including a newly issued CPO warranty seems unlikely.

"Like the Court of Appeal, we think that if the Legislature had intended to define " 'new motor vehicle' to include a potentially vast category of used cars" with unexpired new car warranties, "it would have been done so more clearly and explicitly than tucking it into a reference to demonstrators and dealer-owned vehicles."" (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 199 citing Rodriguez v. FCA US, LLC (2022) 77 Cal.App.5th 209, 221.)

Third, Plaintiff's Complaint itself distinguishes the two warranties as two separate warranties by stating that the subject vehicle was a "new motor vehicle purchased with the MANUFACTURER's new car warranty and the Kia Certified Pre-Owned Warranty." (See Compl., ¶ 6.)

Plaintiff's argument – that a newly issued CPO warranty qualifies as a manufacturer's new car warranty – seems disingenuous when Plaintiff's complaint itself refers to the two warranties as separate warranties, a manufacturer's new car warranty, and the Kia Certified Pre-Owned Warranty. (See Compl., ¶ 6.)

The Court to hear argument.

Kiluk

Plaintiff's opposition also argues that it alleges facts sufficient to constitute a cause of action for the breach of

express warranty claim based on Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334.

The Court to hear argument.

Defendant did not base its argument on Plaintiff failing to allege a breach of express warranty claim on Kiluk.

In opposition, Plaintiff brings up Kiluk to support Plaintiff's argument that he alleged a breach of express warranty claim.

However, the Court does not understand Plaintiff's argument.

With respect to the breach of express warranty claim, Plaintiff argues that a vehicle that was issued a CPO warranty was a "new motor vehicle" under the Act.

In Kiluk a plaintiff bought a certified preowned Mercedes-Benz, and the vehicle was purchased before the expiration of the new car warranty, and the vehicle was purchased with a certified preowned warranty. (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 337.)

A jury found in favor of plaintiff on his causes of action for breach of express warranty and breach of implied warranty of merchantability. (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 338.)

On appeal, Mercedes Benz contended that the judgment must be reversed on the express warranty claim because the Song-Beverly Act does not apply to an express warranty issued by a manufacturer of a used vehicle. (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 338.)

The Court of Appeal disagreed with Mercedes Benz, but it did not decide if the vehicle was a "new motor vehicle" and instead held that even if the vehicle was not a "new motor vehicle" under the Song-Beverly Act, Mercedes Benz was still liable under the used goods

provisions of section 1795.5. (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340.)

Here the Court to hear argument. The Court does not understand either party's arguments on the breach of express warranty claim in relation to Kiluk. The parties originally argued at length over the issue of whether or not the subject vehicle is a "new motor vehicle" under the Act. In opposition, Plaintiff argues the express warranty claim is sufficiently alleged under Kiluk, even though Kiluk doesn't address the issue of what is a "new motor vehicle."

Does the subject vehicle even have to be a "new motor vehicle" under the Act to allege a claim?

If Kiluk held that it didn't matter if the subject vehicle was a "new motor vehicle" under the Act, because Mercedes Benz could be liable under the used goods provisions of section 1795.5, what is the purpose of either's party's arguments on whether or not the complaint sufficiently alleges the subject vehicle is a "new motor vehicle"?

Second Cause of Action

Plaintiff's second cause of action is for breach of implied warranty obligations.

Defendant's argument as to how Plaintiff did not sufficiently state facts to state a claim is not entirely clear.

It appears that Defendant cites a portion of Rodriguez that cites to Ruiz Nunez which states, "Under section 1795.5, 'only distributors or sellers of used goods – not manufacturers of new goods – have implied warranty obligations in the sale of used goods.'" (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 201 quoting Ruiz Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 399.)

It appears that Defendant is arguing that since Plaintiff purchased a used vehicle, and since Plaintiff's complaint

alleges that Kia is a manufacturer of new vehicles, not a distributor or retailer of used vehicles, Plaintiff cannot assert implied warranty claims.

The Court to hear argument.

By and large, Plaintiff's complaint predominantly refers to Defendant as a manufacturer.

However, Plaintiff's opposition points to a few paragraphs in the complaint in which Plaintiff argues that the complaint alleges that Kia is a distributor.

Plaintiff's complaint alleges in relevant part:

5. PLAINTIFF is informed and believes, and thereon alleges, that before January 5, 2022, Defendants KIA and/or DOES 1 through 20, inclusive, and each of them (hereinafter individually and collectively referred to as the "MANUFACTURER"), manufactured and/or distributed, in the United States and the State of California, a consumer good identified as a 2020 Kia Forte bearing vehicle identification number 3KPF24AD4LE|99367 (hereinafter referred to as the "SUBJECT VEHICLE"), for its eventual sale to retail buyers.

7. On or about January 5, 2022, PLAINTIFF purchased the SUBJECT VEHICLE for personal, family, and/or household purposes, from an authorized dealer and agent of MANUFACTURER, located in Los Angeles County, and/or DOES 21 through 50, inclusive, and each of them, retail merchants authorized by MANUFACTURER to do business in the State of California on behalf of MANUFACTURER, for a total consideration over the term of the contract of \$33,501.52. At the time of the purchase, the SUBJECT VEHICLE had 14,440 miles on it.

27. At the time that MANUFACTURER distributed the SUBJECT VEHICLE into commerce, and at the time that PLAINTIFF acquired the SUBJECT VEHICLE, Defendants, and each of them, impliedly warranted that the SUBJECT VEHICLE was merchantable as provided in the ACT.

(Compl., ¶¶ 5, 7, & 27, emph added.)

Plaintiff's opposition appears to concede that only distributors or sellers of used goods, not manufacturers of new goods, have implied warranty obligations in the sale of used goods. Plaintiff thus points to ¶¶ 5-7 and 27 of the complaint to argue that the complaint alleges that Kia is a distributor.

Plaintiff's opposition also relies on Kiluk.

In Kiluk, Mercedes Benz argued that 1795.5 did not apply because it was a manufacturer, but the Court of Appeal in Kiluk held that:

Nothing about the text of section 1795.5 suggests that where a manufacturer acts in the capacity of a retailer, it is exempt from the Song-Beverly Act. Here, Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the "same" as a manufacturer under section 1793.2. Accordingly, it was entirely proper to permit the jury to analyze Mercedes Benz's liability under section 1793.2.

(Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340.)

Plaintiff thus argues that Kia stepped into the role of "retail seller" by issuing its Kia CPO Warranty to Plaintiff at the time of sale.

Here, the Court to hear argument.

Neither party makes clear what elements must be alleged to state a cause of action for breach of implied warranty.

Plaintiff's complaint predominantly alleges that Kia is a manufacturer; however, there are portions of the complaint that could be construed as Plaintiff alleging it is a distributor. (See Compl., ¶¶ 5,7 & 27.)

The Court is unclear as to where Plaintiff is arguing that the complaint alleges that Kia is a retail seller.

Conclusion

The Court to hear arguments on both causes of action as explained above.

Defendant's MJOP additionally argues that the complaint seeks civil penalties under the Act, and those civil penalties fail because Plaintiff does not state a viable claim for breach of express or implied warranty.

The Court notes that it doesn't understand how Defendant's argument on civil penalties pertains to a MJOP based on failure to state facts sufficient to constitute a cause of action. Defendant did not file a motion to strike.

Both parties argue about whether or not leave to amend should be granted.

"In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.)